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File No.: EXP202206974

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 21/08/2023, and based on the following

FACTS

FIRST: On 21/08/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202206974, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on 01/09/2023 as evidenced by the acknowledgment of receipt in the file.

SECOND: The appellant submitted on 02/10/2023, to this Agency, a reconsideration appeal, fundamentally based on the same issues:

"[...]"

SECOND. – The responses from COFIDIS included in the Resolution are a succession of falsehoods, contradictions, and mere justifications. A simple second reading of everything they have responded in the information sent to the Agency reveals and proves that they have been harming me for years and that they have been processing my data without my consent, knowing that I had not contracted with them since I informed them that it was not my signature (and they could verify it). They have even responded to the Agency's information requests as they wanted and when they wanted, disregarding all deadlines. In this regard, on Pg. 5 of the Resolution it is stated...:

"COFIDIS states that the claimant requested the deletion of their personal data in 2017 and that they were informed of the existence of an unpaid debt in their name. It clarifies that, at no time did the claimant indicate a supposed case of identity theft." THIS IS COMPLETELY FALSE as can be seen from the content of the email I sent them and which I reproduce later.

...."Provides a copy of the emails exchanged between the entity and the claimant"

And in the following email that is reproduced I say: (...)

It is evident that, from that moment, even from the beginning of this matter which they say is from 2008!!! why did they not verify my signature, they should have deleted all my data and they did NOT do it. I had to file the Claim that gives rise to this Resolution that I am appealing for them to do so.

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They took more than 5 years since I claimed!!! What legitimacy have they had to process and maintain my data all that time?

I hope they have completely deleted my data and forever.

THIRD. - On 29.08.2022, the Claim was admitted for processing and I ask again what legitimacy COFIDIS has had until then to maintain and process my data? Now they want to apply a new internal code from 01/09/2023 and until then? What justifies their actions?

"[...]"

LEGAL GROUNDS

I

Competence and applicable regulations

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, reiterating basically what was stated above, it should be noted that all of them have already been analyzed and dismissed in section three of the Legal Grounds of the contested Resolution, as transcribed below:

"[...]"

The documentation provided in the file confirms the existence of a credit line contracted for an amount of €12,000 formalized in 2008 between COFIDIS and JAVIER ABAD CASADO, with the claimant appearing as the second holder. In the copy of the referenced document, identifying data (name, surname, mobile number, date of birth, and ID number), professional and economic data of both holders appear. Furthermore, COFIDIS has in its possession a copy of the ID of both holders, which was valid at the time of the credit application (it expired in April 2014).

COFIDIS acknowledges having received emails from the claimant in 2017 in which, on the one hand, they deny having contracted the credit line in question, alleging the falsity of the signature appearing on the document; and, on the other hand, requesting the cancellation of their data. They provide a copy of the aforementioned emails that prove the existence of the claimant's cancellation request and, in turn, the denial of the request by COFIDIS due to the existence of a debt.

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However, COFIDIS has informed that as soon as it became aware of the claim presented by the claimant, it proceeded to adopt a series of measures. On one hand, the personal data of the claimant related to the credit was deleted and remains blocked. It provides a screenshot of its database where it can be seen that in the section "Blocking of the person" in relation to the claimant it states "Yes", as well as an account extract corresponding to the credit line application in which the claimant is no longer listed.

On the other hand, it requested the removal of the claimant's data from the Central Risk Information of the Bank of Spain, which was accepted, as shown in the provided screenshot.

Furthermore, it is worth mentioning that COFIDIS currently has a "Pre-acceptance and direct revolving acceptance regulation" in which it establishes different actions for detecting fraud. A copy of the document, dated 09/01/2023, is attached.

The GDPR requires that the processing of personal data be lawful, which must be based on one of the legal grounds listed in its article 6.1. In light of the documentation in the file, it seems evident that the processing of personal data carried out by COFIDIS is covered by the provision detailed in letter b) of the aforementioned article, without prejudice to the fact that this relationship may be questioned before the corresponding jurisdictional order given that the claimant states that someone used their personal data to contract the credit line and forged their signature.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as the processing of personal data without a legitimate cause has not been substantiated.

III

Conclusion

Consequently, in this appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to operational reasons of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures

for challenging acts and provisions is dismissive.

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Nevertheless, despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation, as provided in article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having seen the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on 21/08/2023, in file EXP202206974.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with article 48.6 of the LOPDPGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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